



EAGLE MOUNTAIN PLANNING COMMISSION MEETING MINUTES

January 28, 5:30 p.m.
Eagle Mountain City Council Chambers
1650 East Stagecoach Run, Eagle Mountain, Utah 84005

COMMISSION MEMBERS PRESENT: Commissioners Jason Allen, Rod Hess, Robert Fox, and Alternate Commissioner Bryan Free.

ELECTED OFFICIALS PRESENT: Councilmember Rich Wood, Liaison to the Planning Commission, and Councilmember Brent Wright.

CITY STAFF PRESENT: Brandon Larsen; Planning Director; Marcus Draper, City Attorney; Todd Black, Wildlife Biologist/Environmental Planner; Robert Hobbs, Senior Planner; Steven Lehmitz, Planner; Ashely Swensen, Planner; Heather Lamb, Planning Secretary; Even Berrett, Economic Development Director; and Elizabeth Fewkes, Planner.

5:30 P.M. – Eagle Mountain City Planning Commission Work Session

Commissioner Allen called the meeting to order at 5:31 p.m.

1. Discussion Items
 1. A. DISCUSSION ITEM – Health and Planning

Shawna Ellis, Community Development Executive Assistant --presented on Healthy Lifestyles, and Healthy Planning, along with definitions related to Health.

Commissioner Allen adjourned the work session at 6:04 p.m.

6:30 P.M. – Eagle Mountain City Planning Commission Policy Session

2. Commissioner Allen called the policy session to order at 6:30 p.m.
3. Pledge of Allegiance

Commissioner Allen led the Pledge of Allegiance.
4. Declaration of Conflicts of Interest

None.
5. Approval of Meeting Minutes

5. A.

MOTION: *Commissioner Hess moved to approve the minutes of January 11, 2025, with the corrections noted by Commissioner Allen. Commissioner Fox seconded the motion.*

Jason Allen	Abstain
Robert Fox	Yes
Rod Hess	Yes
Brent Strong	Absent
Craig Whiting	Absent
Bryan Free	Yes

The motion passed with a unanimous vote.

6. Status Report

Planning Director Brandon Larsen reviewed the planning items discussed and voted upon during the City Council meeting.

7. Action and Advisory Items

7. A. Selection of Planning Commission Chair and Vice-chair.

MOTION: *Commissioner Hess moved to table Item 7. A. Commissioner Allen seconded the motion.*

Jason Allen	Yes
Robert Fox	Yes
Rod Hess	Yes
Brent Strong	Absent
Craig Whiting	Absent
Bryan Free	Yes

The motion passed with a unanimous vote.

7. B. ORDINANCE/PUBLIC HEARING - An Ordinance of Eagle Mountain City, Utah, Rezoning Certain Lands Known as Meadow Ranch Plat 4 Lot 433.

Item 7.B. and Item 7.C. were presented concurrently.

Presented by Senior Planner Robert Hobbs: A proposal to rezone property located at 9720 N. Shiloh Way in Eagle Mountain City (Parcel ID: 46:536:0433, comprising some 4.072 acres of real property, from Parks and Open Space to RD1 for, and on behalf of Eagle Mountain City.

Planning Commission Discussion Points:

- Concerns regarding stormwater and drainage,
- Discussion regarding how Plat approval would be contingent on Rezone approval,
- Discussion and Review of Covenants, Conditions, and Restrictions from 1999 (Homeowners Association dissolved in 2007) and the programs and processes to find other City records (Open Gov, SharePoint, and G Drive) and
- Discussion regarding how the Planning Commission would like the City to have more information and history of Item 7. B. to have a better understanding to make a knowledgeable decision.

Commissioner Allen opened the public hearing at 6:44 p.m.

The following individuals spoke during the public comment period: Brad Burton, Mike Fallentine, and Sean Slobodan

Commissioner Allen closed the public hearing at 6:54 p.m.

MOTION: *Commissioner Hess moved to forward a negative recommendation to the City Council of Item 7B. Commissioner Allen seconded the motion.*

Jason Allen	Yes
Robert Fox	Yes
Rod Hess	Yes
Brent Strong	Absent
Craig Whiting	Absent
Bryan Free	Yes

The motion passed with a unanimous vote.

7. C. PRELIMINARY PLAT - Meadow Ranch Plat 9.

Presented by Senior Planner Robert Hobbs: A request for preliminary plat approval of a proposed subdivision of Meadow Ranch Plat 4 Lot 433 (County Assessor Parcel/Serial # 46:536:0433) located at 9720 N. Shiloh Way in Eagle Mountain City, comprising some 4.072 acres of real property to create three (3) residential 1.2+ acre building lots to be known as Meadow Ranch Plat 9 for, and in behalf of, Eagle Mountain City.

MOTION: *Commissioner Allen moved to table Item 7. C. Commissioner Fox seconded the motion.*

Jason Allen	Yes
Robert Fox	Yes
Rod Hess	Yes
Brent Strong	Absent
Craig Whiting	Absent
Bryan Free	Yes

The motion passed with a unanimous vote.

7.D. ORDINANCE/PUBLIC HEARING - An Ordinance of Eagle Mountain City, Utah, Amending the Eagle Mountain Municipal Code 17.60.120 General Fencing and Screening Provisions

Presented by Senior Planner Robert Hobbs: A proposal to enact an ordinance amending Title 17, Chapter 60 Section 120.C.1.c by clarifying when barbed wire, electrified wire, full wire, or chain link fencing is allowed; to Section 120.D to allow for City installed fencing along certain sensitive lands, to Section 120. H.4 to specify that full electric fences may be used to secure power plants; and add a new section R regarding temporary fencing.

Planning Commission Discussion Points: There was no discussion as to Item 7.D.

Commissioner Allen opened the public hearing at 7:22 p.m. As there were no comments, he closed the hearing at 7:22 p.m.

MOTION: *Commissioner Hess moved to forward a positive recommendation to the City Council of Item 7.D. Commissioner Allen seconded the motion.*

Jason Allen	Yes
Robert Fox	Yes
Rod Hess	Yes
Brent Strong	Absent
Craig Whiting	Absent
Bryan Free	Yes

The motion passed with a unanimous vote.

7.E. ORDINANCE/PUBLIC HEARING - An Ordinance of Eagle Mountain City, Utah, Amending the Saddle Junction Plat 1 Subdivision.

Presented by Planner, Ashley Swensen: A proposed Plat Amendment for Saddle Junction Plat 1, located at the southwest corner of the SR-73 and Ranches Pkwy intersection. (Parcel ID: 66:403:0103).

Applicant's Statement Summary Zach Hatch: Stated Lot 102, Saddle Junction, Plat 1, was split roughly five (5)-six (6) years ago by the same owner for tax purposes, those resulting parcels were then purchased by two different entities, but those two entities have the same one owner because of that the property was not plated but only deeded.

Planning Commission Discussion Points:

- Discussion regarding the State Code and the process of recording a subdivision as a plat and as a deed.

Commissioner Allen opened the public hearing at 7:30 p.m. As there were no comments, he closed the hearing at 7:31 p.m.

MOTION: *Commissioner Allen moved to forward a positive recommendation of Item 7.E. to the City Council. Commissioner Fox seconded the motion.*

Jason Allen	Yes
Robert Fox	Yes
Rod Hess	Yes
Brent Strong	Absent
Craig Whiting	Absent
Bryan Free	Yes

The motion passed with a unanimous vote.

7. F. ORDINANCE/PUBLIC HEARING - An Ordinance of Eagle Mountain City, Utah, Approving the Spring Run Plaza Master Development Plan.

Presented by Planner Steven Lehmitz: A proposed Master Development Plan for the Spring Run Plaza project, located at the northeast corner of SR-73 and Spring Run Parkway (Parcel ID: 58:033:0628).

Applicants Statement Summary, Jason Thompson, AWA, Civil Engineer, representing Developer: Explained that the seven (7) ½ acres proposed development is intended to be started immediately – other areas pictured may not accurately represent plans.

Planning Commission Discussion Points:

- Discussion of the start date for this project, which was answered by Applicant to be in the summer of 2025.

Commissioner Allen opened the public hearing at 7:38 p.m. As there were no comments, he closed the hearing at 7:39 p.m.

MOTION: *Commissioner Fox moved to recommend a positive recommendation to the City Council of Item 7. F. Commissioner Allen seconded the motion.*

Jason Allen	Yes
Robert Fox	Yes
Rod Hess	Yes
Brent Strong	Absent
Craig Whiting	Absent
Bryan Free	Yes

The motion passed with a unanimous vote.

7. G. First Amendment to QTS Development Agreement.

Presented by Marcus Draper, City Attorney: On July 18, 2023, the City entered into a Development Agreement with QTS regarding a data center project adjacent to the Facebook data center property. Previously, QTS had received assurances from Rocky Mountain Power that there would be sufficient power to service the first phase of the project. That appears to no longer be the case. The parties are looking to amend the development agreement to allow on-site power generation as an accessory use to enable the project to be successful. This would be consistent with other approved development agreements for data center projects.

Presented by Evan Berrett, Economic Development Director: Review of First Amendment QTS Development Agreement language vs Current Tract DA Language.

Applicant, Danny Kelly, QTS Data Center: Stated the plant would be a 20-acre natural gas plant that would produce approximately 200 megawatts. The plan would be to use the plant continuously and to remove the three hundred and ten (310) backup diesel generators, which would lessen emissions, this power would be an accessory to help with the data use.

Planning Commission Discussion Points: There was no discussion as to Item 7. G.

MOTION: *Commissioner Fox moved to recommend a positive recommendation to the City Council of Item 7.G. Commissioner Hess seconded the motion.*

Jason Allen	Yes
Robert Fox	Yes
Rod Hess	Yes
Brent Strong	Absent
Craig Whiting	Absent
Bryan Free	Yes

The motion passed with a unanimous vote.

8. Discussion Items

- Next Planning Commission Meeting: February 11, 2025,
- Power Plant Tour in Lehi on Thursday, January 30, 2025, at 4:00 p.m.; and
- Joint Meeting during the City Council Meeting regarding Architectural Presentation - February 4, 2025, at 4:00 p.m.

9. Next Scheduled Meeting

The next Planning Commission meeting is scheduled for February 11, 2025, at 5:30 p.m.

10. Adjournment

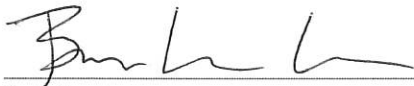
MOTION: *Commissioner Hess moved to adjourn the meeting at 7:53 p.m. Commissioner Allen seconded the motion.*

Jason Allen	Yes
Robert Fox	Yes
Rod Hess	Yes
Brent Strong	Absent
Craig Whiting	Absent
Bryan Free	Yes

The motion passed with a unanimous vote.

The meeting was adjourned at 7:53 p.m.

Approved by the Planning Commission on



Brandon Larsen
Planning Director